

Court No. - 2

Case :- WRIT - C No. - 2824 of 2025

Petitioner :- Mohammad Izlal Siddiqui

Respondent :- State Of U.P. Thru. Its Addl. Chief Secy./Prin. Secy. Energy Deptt. Lko. And 2 Others

Counsel for Petitioner :- Inam Uddin Ahmed

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Rajan Roy,J.

Hon'ble Om Prakash Shukla,J.

Heard.

The petitioner's grievance is that he has applied for an electricity connection at the house situated in Village Muzaffar Khedi, Behind S. M. University, Sarosa Bharosa, Mohan Road Sadrauna, District Lucknow, which he claims to be his, however, learned counsel for the Electricity Corporation says that ownership of the ancestral house is disputed as it is not recorded in the name of the petitioner and there is a suit pending for partition, however, in the same vein, she submits that if an Indemnity Bond is submitted by the petitioner and other requirements are satisfied including the possession of the petitioner, then the application for grant of electricity connection can be considered.

Considering the judgment of this Court reported in **2014 (6) ADJ 672, Seema Mansoor vs. U.P. Power Corporation Ltd.**, and the decision of the Supreme Court in the case reported in **(2011) 12 SCC 314, Sri Chandu Khamaru v. Nayan Malik & ors.**, though they were rendered in the case of tenant-landlord but on the principles enunciated therein, it is provided that if the petitioner has already applied for grant of an electricity connection on the premises in question, then the concerned Sub Divisional Officer/Executive Engineer or whosoever is competent in this regard shall process the same, verify as to whether the petitioner is in lawful possession of the said premises or not and thereafter take a decision for grant of electricity connection in accordance with law keeping in mind the aforesaid decisions and the principles contained therein.

The Indemnity Bond would be submitted by the petitioner in terms of the principles contained in para 4.4 of the Electricity Supply Code, 2005 even if the petitioner claims himself to be the owner as there is a partition suit pending as per the

Electricity Corporation's counsel.

This order, however, shall have no bearing, whatsoever, on any question of possession or title pending before any Court or Authority in respect of the premises in question involving the parties herein.

We make it clear that if there is any restraint order of any Court, which does not entitle the petitioner to get electricity connection, then benefit of our order shall not be available to the petitioner.

The Writ Petition stands **disposed of**.

(Om Prakash Shukla,J.) (Rajan Roy,J.)

Order Date :- 25.3.2025

Saurabh